

FIRFITA - Terms and Conditions

Last Updated: June 2026

These Terms and Conditions ("Terms") govern the purchase of products and services from **FirFita** ("we," "our," "us"). By placing an order with FirFita, you agree to be bound by these Terms.

1. Acceptance of Terms

By submitting an order, providing audio content, artwork, or any other materials to FirFita, you acknowledge that you have read, understood, and agreed to these Terms and Conditions.

2. Copyright and Intellectual Property Responsibility

FirFita provides a custom vinyl cutting service based on materials supplied by the customer.

By submitting any audio recordings, artwork, images, logos, trademarks, or other content, you represent and warrant that:

- You own all necessary rights to the submitted content; or
- You have obtained all necessary licenses, permissions, and authorizations from the rightful copyright owners; and
- Your order does not infringe upon any copyright, trademark, intellectual property right, or other legal right of any third party.

FirFita does not verify ownership or licensing of submitted materials.

The customer assumes full legal responsibility for any copyrighted, trademarked, or otherwise protected content submitted to FirFita.

FirFita shall not be liable for any claims, damages, legal actions, losses, penalties, or expenses arising from the customer's use of copyrighted or otherwise protected materials.

The customer agrees to indemnify and hold harmless FirFita, its owners, employees, and affiliates against any claims related to copyright infringement, intellectual property violations, or unauthorized use of protected content.

3. Product Nature and Limitations

FirFita produces **lathe-cut vinyl records (duplates)**.

Customers acknowledge and understand that:

- Duplates are not manufactured using traditional pressed-vinyl production methods.
- Duplates generally have a shorter lifespan than commercially pressed vinyl records.
- Audio quality, surface noise, and durability may differ from factory-pressed records.
- Frequent playback, improper storage, incorrect tracking force, damaged styluses, or unsuitable playback equipment may accelerate wear and reduce the lifespan of the record.
- Each record is individually cut and may contain minor variations inherent to the lathe-cutting process.

By placing an order, the customer accepts these characteristics and limitations.

4. No Refunds and Final Sales

All sales are final.

Due to the custom-made nature of FirFita products:

- No refunds will be issued.
- No returns will be accepted.
- No exchanges will be provided.
- Orders cannot be canceled once production has begun.

Customers are responsible for reviewing all submitted materials, track listings, artwork, and order details before approving production.

Refunds or replacements may only be considered at FirFita's sole discretion in cases where the delivered product substantially differs from the specifications agreed upon before production.

5. Customer-Provided Materials

Customers are responsible for:

- Providing accurate audio files and artwork.
- Verifying spelling, track names, and design content.
- Ensuring all submitted materials meet their expectations.

FirFita is not responsible for errors contained within customer-supplied files or information.

6. Limitation of Liability

To the maximum extent permitted by applicable law, FirFita shall not be liable for:

- Indirect or consequential damages;
- Loss of profits;
- Loss of business opportunities;
- Copyright infringement claims resulting from customer-submitted materials;
- Damage resulting from misuse, mishandling, or improper playback of products.

FirFita's maximum liability for any claim shall not exceed the amount paid by the customer for the specific order giving rise to the claim.

7. Audio Quality and Mastering

The customer acknowledges that the final sound of a lathe-cut record may differ from the original digital audio file due to the physical limitations of the vinyl cutting process.

FirFita does not guarantee that the final product will sound identical to the submitted audio files.

Certain audio characteristics may require adjustment to achieve a successful cut, including but not limited to:

- Excessive bass frequencies
- Excessive stereo information in low frequencies
- High overall loudness
- Distortion present in the source material
- Excessive sibilance ("s" sounds)

- Clipping or digital distortion

FirFita may recommend modifications to improve cut quality but is not responsible for audio issues present in customer-supplied files.

8. Customer Approval

Where test cuts, previews, mockups, artwork proofs, or approval materials are provided, the customer is responsible for reviewing them carefully.

Once approval is provided, FirFita shall not be responsible for:

- Spelling errors
- Incorrect track titles
- Incorrect track order
- Artwork issues
- Metadata errors
- Customer-requested design choices

Customer approval constitutes acceptance of all submitted materials.

9. Handmade Manufacturing Variations

Each FirFita record is individually and manually cut.

As a result, minor variations may occur between records, including:

- Surface appearance
- Label placement
- Audio characteristics
- Cutting depth
- Centering tolerances

Such variations are considered normal and do not constitute defects.

10. Shipping and Delivery

Ownership and risk of loss transfer to the customer upon delivery of the package to the shipping carrier.

FirFita is not responsible for:

- Shipping delays
- Customs delays
- Lost packages caused by carriers
- Damage occurring during transit

Customers should inspect packages upon arrival and contact the shipping carrier directly regarding transit-related claims.

11. Production Timeline

Estimated production times are provided for informational purposes only.

Production and delivery dates are not guaranteed and may be affected by:

- Equipment maintenance
- Material availability
- Order volume
- Holidays
- Force majeure events

FirFita shall not be liable for delays beyond its reasonable control.

12. Refusal of Service

FirFita reserves the right to refuse any order at its sole discretion, including but not limited to orders containing:

- Illegal content
- Hate speech
- Threats or harassment
- Fraudulent activity

- Content that may expose FirFita to legal liability

Any refused order may be canceled prior to production.

13. Force Majeure

FirFita shall not be liable for delays or failure to perform obligations due to circumstances beyond reasonable control, including:

- Natural disasters
 - Fire
 - Flood
 - Power outages
 - Internet outages
 - Government actions
 - Labor disputes
 - Equipment failures
 - Supply chain disruptions
-

14. Limited Warranty

FirFita warrants only that the product will be materially consistent with the agreed order specifications at the time of delivery.

Because lathe-cut records are consumable physical media subject to wear, no warranty is provided regarding lifespan, future playback performance, or compatibility with every turntable model.

15. Governing Law

These Terms shall be governed by and interpreted in accordance with the laws of Georgia (Sakartvelo), without regard to conflict of law principles.